

24STCV19779 24STCV19779

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-18

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Case Number: 24STCV19779 Hearing Date: August 18, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

VAROOJ ARAKELIAN,

Plaintiff,

vs.

CITY OF LOS ANGELES, et al.,

Defendants

Case No.:

24STCV19779

Hearing Date:

August 18, 2026

[TENTATIVE] ORDER GRANTING UNOPPOSED MOTION TO BE RELIEVED AS COUNSEL

I. BACKGROUND

Plaintiff Varooj Arakelian ("Arakelian") was riding a Defendant Neutron Holdings, Inc. ("Lime") scooter in front of Defendant Los Angeles Unified School District's ("LAUSD") premises when he allegedly ran over a cracked and uplifted portion of the sidewalk, causing him to fall off the scooter. Arakelian sued Defendants for product liability and premises liability.

On July 9, 2026, Arakelian's attorney, Robert L. Booker II, filed the instant motion to be relieved as counsel for Arakelian. No opposition has been filed to date.

II. LEGAL STANDARD

A Motion to Be Relieved as Counsel requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Counsel submitted completed MC-051, MC-052 and MC-053 forms in compliance with the California Rules of Court rule 3.1362 requirements.

Counsel submitted a declaration stating that there has been irreconcilable breakdown in the attorney-client relationship (MC-052, ¶ 2.) Counsel asserts counsel served Arakelian at his last known address via mail, confirmed via telephone call. (MC-052 ¶ 3(a)(2) and (b)(1)(b).) Counsel served all parties who have appeared in this action.

IV. CONCLUSION

Arakelian's Counsel's Motion to Be Relieved as Counsel is therefore GRANTED. Counsel will be relieved upon filing proof of service upon the client of the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (Judicial Council form MC-053).

Counsel is ordered to give notice.

DATED: August 18, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.